

this chapter II.A.6.3.5; as to the limits of this, see T. 2221/10, summarised in this chapter II.A.6.3.1). On this basis, the board in T. 500/01 held that, a claim, the wording of which is essentially identical to a claim as originally filed, can nevertheless contravene the requirements of Art. 123(2) EPC if it contains a feature whose definition has been amended in the description in a non-allowable way (see also chapter II.E.1.14.4). In T. 1360/13 the board held that any change in the description or drawings may have an influence on the understanding of a claimed feature, in particular when it must be considered ambiguous in view of a piece of prior art or an allegedly infringing product, and may thus lead to a broadening of the extent of the protection conferred. Any information in the description and/or drawings of a patent directly related to a feature of a claim and potentially restricting its interpretation could not be removed from the patent without infringing Art. 123(3) EPC (see also chapters II.E.2.4.2 and II.E.2.4.5).

In T. 1023/02 the invention was based on the recognition that the genes for a specific viral protein (ICP34.5) expressed in infected cells determine the ability of herpes simplex viruses to destroy central nervous system tissue. The respondent argued that a post-published document revealed the existence of an ORF-P gene coincident with but anti-sense to the ICP34.5 gene. Therefore, in view of the term "only", the claim had to be interpreted as requiring that the first method step did not interfere with the expression of this ORF-P gene. The board, however, pointed out that it was apparent from the description that the patentee had not envisaged the existence of this gene. The skilled reader would therefore, in the light of the description, not interpret the subject-matter of claim 1 in the way advocated by the respondent. Accordingly post-published knowledge of further technical details and/or complications could not justify this interpretation.

In T. 1409/16 the board considered that both "exclusive disjunctions" and "inclusive disjunctions" could be expressed by the "either (...) or" wording. The fact that another expression ("and/or") was used (in the sense of an inclusive "or") in another claim of the contested patent was not, as such, a compelling reason for concluding that the "either (...) or" wording used in the claim in question must have a different meaning, i.e. that it expressed an exclusive "or". There was no absolute obligation to use a fully coherent terminology for expressing given features if the latter could be expressed in different ways. The board held that the "either (...) or" wording could only be considered as expressing an exclusive "or" in cases where the two situations referred to were, due to their very nature, mutually exclusive, i.e. incompatible with each other.

6.3.4 Reading additional features and limitations into the claims

For the purposes of judging novelty and inventive step, Art. 69 EPC (Art. 69 EPC 1973) and its Protocol cannot be relied on to read into the claim an implicit restrictive feature not suggested by the explicit wording of the claim (T. 1208/97, T. 681/01, T. 881/01, T. 1105/04, T. 223/05, T. 1736/06, T. 299/09, T. 58/13). In proceedings before the EPO, where the patentee has the opportunity of cutting down his claims to accord with stricter limits given in the description, the scope of a claim should not be cut down by implying into it features which appear only in the description, as this would deprive claims of their intended function (T. 881/01).

In T 932/99 claim 1 was directed to a product per se. The claim defined only the structure of a membrane as such, independently from its installation in an apparatus for gas separation. The board pointed out that, for this reason, the indication in the claim "capable of separating oxygen from oxygen-containing gaseous mixture" merely served the purpose of defining a capability of the claimed membrane, without imparting any limitations on any actual use of the structure claimed. The respondents had argued that, if claim 1 was interpreted in the light of the description, those limitations would be apparent. However, the board held that a distinction had to be drawn between, on the one hand, the fact that it might be necessary to take into account any explicit definition as given in the description for interpreting a claim's term and, on the other hand, the attempt to use Art. 69 EPC 1973 as a basis for reading limitations derived from the description into claims in order to avoid objections based on lack of novelty or inventive step. The latter approach to interpretation, whereby features mentioned only in the description were read into claim 1 as necessary limitations, was incompatible with the EPC (referring to T 1208/97). See also T 945/99, T 2049/07.

In T 1018/02 the board emphasised that, although a claim must not be interpreted in a way which was illogical or did not make sense, the description could not be used to give a different meaning to a claim feature which in itself imparted a clear, credible technical teaching to the skilled reader. This also applied if the feature had not been initially disclosed in the form appearing in the claim. See also T 373/01, T 396/01.

In T 121/89 the board used the description to interpret an ambiguous term ("loose ignition charge"), but at the same time stressed that only features recited in or deducible from the claims could be set forth to distinguish the invention from the state of the art. The examples cited in the description did not limit the scope of the claims unless they were explicitly mentioned in them. See also T 544/89.

In T 416/87 (OJ 1990, 415), on the other hand, the board was confronted with the situation where a feature was not included in the claims which the description on its proper interpretation specified to be an overriding requirement of the invention. The board held that, following Art. 69(1) EPC 1973 and its Protocol, the claims might be interpreted as requiring this as an essential feature, even though the wording of the claims when read in isolation did not specifically require such feature (confirmed in an obiter dictum in T 717/98). See also T 620/08, T 2525/11.

6.3.5 Use in the examination relating to the clarity requirement pursuant to Article 84 EPC

In a large number of decisions (see in this chapter II.A.6.3.1) the boards interpreted the claims in the light of the description and drawings in order to establish whether they were clear and concise.

In T 456/91 the board was of the opinion that the clarity of a claim was not diminished by the mere breadth of a term of art contained in it, if the meaning of such term was unambiguous for a person skilled in the art, either per se or in the light of the description. In this case an extremely large number of compounds could be used for carrying out the

invention. It was clear from the claims, when read in the light of the description, which peptides were suitable for the invention.

Likewise, in T. 860/93 (OJ 1995, 47) the board assumed that the description might be used to determine whether the claims were clear. In so doing it took its cue from the general legal principle whereby the best interpretation is that made from what precedes and what follows. It accepted the reasoning in T. 454/89 (see below), namely that the description could only be used to determine the extent of the protection conferred and not to establish clarity, only in the case of claims which were self-contradictory, but not in general (see also T. 884/93, T. 287/97). In several decisions the boards stated that a patent may be its own dictionary (see in this chapter II.A.6.3.3).

However, a number of decisions point out the limits to the use of the description and drawings in the examination relating to the clarity requirement.

T. 2/80 (OJ 1981, 431) pointed out that a claim did not comply with the requirement of clarity laid down in Art. 84 EPC 1973 if it was not, per se, free of contradiction. It had to be possible to understand the claims without reference to the description (see also T. 412/03, T. 129/13). In decision T. 454/89 the board shared this view and explained that Art. 84 EPC 1973 requires that claims must be clear in themselves when read using normal skills, including knowledge of the prior art but not any knowledge derived from the description contained in the patent application or the amended patent. While it was true that Art. 69 EPC 1973 allowed the description to be used to interpret the claims, it was only concerned with the extent of protection conferred as one of the effects of an application or patent whenever that extent had to be determined, particularly for third parties. It was not concerned with a claim's definition of the matter for which protection was sought, as was Art. 84 EPC 1973. In the course of the examination of an opposition, therefore, the applicant or patentee could not rely on Art. 69 EPC 1973 as a substitute for an amendment which would be necessary to remedy a lack of clarity. The board took the same line in decision T. 760/90.

In T. 1129/97 (OJ 2001, 273), the board held that the mere fact that the precise meaning of an unclear term ("low alkyl") was expressly disclosed in the description but not in the claims did not mean that the latter met the clarity requirement. The clarity stipulation under Art. 84 EPC 1973 concerned only the claims, and therefore – according to the established case law of the EPO boards of appeal – required that they be clear in themselves, without there being any need for the skilled person to refer to the description. True, under Art. 69(1) EPC 1973 the description was to be used to interpret the claims. But Art. 69 EPC 1973 concerned only the extent of protection where this was at issue, e.g. with third parties, and not (as in Art. 84 EPC 1973) the definition of the matter to be protected by a claim. Confirmed in T. 56/04, T. 64/03, T. 1265/13.

In T. 49/99 the board held that since clarity was a claim requirement, a clarity deficiency in the claim wording was not rectified by the fact that the description and the drawings would help the reader to understand the technical subject-matter that the claim was intended to define. See also T. 623/13.

In T. 56/04 the board pointed out that a claim containing an unclear technical feature prevented its subject-matter from being identified beyond doubt. That was particularly the case if the unclear feature was meant to delimit the claimed subject-matter from the state of the art. The board therefore took the view that a vague or unclear term which was used in the claim and a precise definition which was to be found only in the description could be allowed only in exceptional cases to delimit the claimed subject-matter from the state of the art. Such an exception pursuant – *mutatis mutandis* – to R. 29(6) EPC 1973 exists if the precise definition – for whatever reason – cannot be incorporated into the claim, and the precise definition of the vague or unclear term is unambiguously and directly identifiable by a skilled person from the description. In T. 56/04 the board said that an exception was not involved. The specific value of "approximately 1 mm" disclosed in the description could have been incorporated into the claim itself instead of "slightly less than [...]". See also T. 623/13.

On the extent to which it must be clear from the claim itself how parameters are to be determined when a product is characterised by parameters, see in this chapter II.A.3.5. In a number of decisions it is stressed that the claims must be clear in themselves when read with the normal skills but without any knowledge derived from the description (see e.g. T. 412/02 and T. 908/04). In T. 992/02 however the board deemed it justified in the case in point for the claim not to include the procedure for measuring the parameter.

6.3.6 Definition of the scope of protection with regard to infringement not within the EPO's competences

In T. 442/91 the respondents wanted the board to rule on the extent of the protection conferred by what they considered to be broad claims. The board observed that the EPO concerned itself in opposition appeal proceedings with the extent of protection conferred by a patent only for the purposes of examining compliance with Art. 123(3) EPC 1973. Beyond that, interpreting the extent of protection was a matter for national courts dealing with infringement cases. Whilst the EPO made it clear how terms of art used in the claims should be understood, it should not proffer any further interpretation of the patent's future scope beyond that (see also T. 740/96). In line with this thinking, the board in T. 439/92 and T. 62/92 interpreted the claims with a view to identifying their subject-matter.

7. Product-by-process claims

7.1. Introduction

Under Art. 64(2) EPC (1973 and 2000) the protection conferred by a process patent extends to the products obtained directly by the process, even if they are not patentable *per se*. Certain applicants tried to acquire protection for known products by using process claims to define them, arguing that it follows from Art. 64(2) EPC 1973, that a product is rendered novel by the fact that it is produced by means of a new process.

The boards of appeal did not accept this line of argument and made a distinction between claims to a new and inventive product defined by its method of manufacture and claims to

a new and inventive process, the protective effects of which also extended to the direct products of this process.

The first decision in this regard was T 150/82 (OJ 1984, 309). The board stated that claims for products defined in terms of processes for their preparation (known as "product-by-process" claims) were admissible only if the products themselves fulfilled the requirements for patentability and there was no other information available in the application which could have enabled the applicant to define the product satisfactorily by reference to its composition, structure or some other testable parameter (established case law, see e.g. G 2/12, OJ 2016, A28 and G 2/13, OJ 2016, A29; T 956/04; T 768/08; T 150/12).

With regard to product-by-process claims, the requirement of clarity means that the skilled person should be able to determine, either from the claim alone or, by construction of the claim in the light of the description, or by construction in the light of the skilled person's common general knowledge, which identifiable and unambiguous technical features are imparted to the product by the process by which it is defined (T 967/10, T 1988/12, T 354/17, T 2243/18). In T 1988/12 the board rejected the idea that the claim was necessarily clear if a skilled person (i.e. a plant breeder) could determine whether or not a candidate plant fell within its terms. The suggestion that the skilled person had to rely on an analysis of a potentially infringing product to know what the subject-matter for which protection was sought actually was, ran counter to the purpose of Art. 84 EPC.

7.2. Requirement that the claimed product must be patentable

In decision T 248/85 (OJ 1986, 261) it was stated that a product could be defined by the use of various parameters, such as its structure or its process of preparation. The use of a different parameter by which to define a particular product could not by itself give the product novelty. Furthermore Art. 64(2) EPC 1973 did not confer novelty upon a claim which was formulated as a "product-by-process" when no novelty existed in such product per se, and did not entitle or enable an applicant for a European patent to include such claims in his patent which did not satisfy the requirements of Art. 52(1) EPC 1973.

In T 219/83 (OJ 1986, 211) the board stated that product-by-process claims had to be interpreted in an absolute sense, i.e. independently of the process. If their subject-matter as such was new, they still did not involve an inventive step merely because the process for their preparation did so. In order to be patentable, the claimed product as such had to be a solution to a separate technical problem which was not obvious in the light of the state of the art.

These criteria were confirmed and applied in many decisions (see e.g. T 251/85, T 563/89, T 493/90, T 664/90, T 223/96, T 59/97, T 748/98, T 620/99, T 1113/10).

The board clarified the conditions for novelty of product-by-process claims in decision T 205/83 (OJ 1985, 363). It stated that the polymer product of a known chemical process was not rendered new merely by virtue of a modification to the process. If a chemical product could not be defined by structural characteristics but only by its method of manufacture, novelty could be established only if evidence was provided that modification